

CHAPTER - 4

TRESPASS

TRESPASS TO THE PERSON

There are three types of trespass, the first of which is trespass to the person. Whether intent is a necessary element of trespass to the person varies by jurisdiction. Under English decision, *Letang v Cooper*, intent is required to sustain a trespass to the person cause of action; in the absence of intent, negligence is the appropriate tort. In other jurisdictions, gross negligence is sufficient to sustain a trespass to the person, such as when a defendant negligently operates an automobile and strikes the plaintiff with great force. "Intent is to be presumed from the act itself." Generally, trespass to the person consists of three torts: assault, battery, and false imprisonment.

Assault

Under the statutes of various common law jurisdictions, assault is both a crime and a tort. Generally, a person commits criminal assault if he purposely, knowingly, or recklessly inflicts bodily injury upon another; if he negligently inflicts bodily injury upon another by means of dangerous weapon; or if through physical menace, he places another in fear of imminent serious bodily injury. A person commits tortious assault when he engages in "any act of such a nature as to excite an apprehension of battery [bodily injury]". In some jurisdictions, there is no requirement that actual physical violence result—simply the "threat of unwanted touching of the victim" suffices to sustain an assault claim. Consequently, in *R v Constanza*, the court found a stalker's threats could constitute assault. Similarly, silence, given certain conditions, may constitute an assault as well. However, in other jurisdictions, simple threats are insufficient; they must be accompanied by an action or condition to trigger a cause of action.

Incongruity of a defendant's language and action or of a plaintiff's perception and reality may vitiate an assault claim. In *Tuberville v Savage*, the defendant reached for his sword and told the plaintiff that "if it were not assize-time, I would not take such language

from you". In its American counterpart, *Commonwealth v. Eyre*, the defendant shouted "if it were not for your gray hairs, I would tear your heart out". In both cases, the courts held that despite a threatening gesture, the plaintiffs were not in immediate danger. The actions must give the plaintiff a reasonable expectation that the defendant is going to use violence; a fist raised before the plaintiff may suffice; the same fist raised behind the window of a police cruiser will not.

Battery

Battery is "any intentional and unpermitted contact with the plaintiff's person or anything attached to it and practically identified with it". The elements of battery common law vary by jurisdiction. A general rule to determine liability for battery:

An act which, directly or indirectly, is the legal cause of a harmful contact with another's person makes the actor liable to the other, if:

the act is done with the intention of bringing about a harmful or offensive contact or an apprehension thereof to the other or a third person, and contact is not consented to by the other or the other's consent thereto is procured by fraud or duress, and the contact is not otherwise privileged.

Battery torts under Commonwealth precedent are subjected to a four point test to determine liability:

- Directness. Is the sequence of events connecting initial conduct and the harmful contact an unbroken series?
- Intentional Act. Was the harmful contact the conscious object of the defendant? Did the defendant intend to cause the resulting harm? Though the necessity of intent remains an integral part of Commonwealth battery, some Commonwealth jurisdictions have moved toward the American jurisprudence of "substantial certainty". If a reasonable person in the defendant's position would apprehend the substantial certainty

of the consequences of his actions, whether the defendant intended to inflict the injuries is immaterial.

- Bodily Contact. Was there active (as opposed to passive) contact between the bodies of the plaintiff and the defendant?
- Consent. Did the plaintiff consent to the harmful contact? The onus is on the defendant to establish sufficient and effective consent.

False imprisonment

False imprisonment is defined as "unlawful obstruction or deprivation of freedom from restraint of movement". In some jurisdictions, false imprisonment is a tort of strict liability: no intention on the behalf of the defendant is needed, but others require an intent to cause the confinement. Physical force, however is not a necessary element, and confinement need not be lengthy; the restraint must be complete, though the defendant needn't resist.

A tort distills false imprisonment liability analysis into a four-prong test:

- The defendant intends to confine the plaintiff.

(This is not necessary in Commonwealth jurisdictions.)

- The plaintiff is conscious of the confinement. (Prosser rejects this requirement.)
- The plaintiff does not consent to the confinement.
- The confinement was not otherwise privileged.

TRESPASS TO LAND

Trespass to land involves the "wrongful interference with one's possessory rights in real property." It is not necessary to prove that harm was suffered to bring a claim, and is instead actionable per se. While most trespasses to land are intentional, British courts have held liability holds for trespass committed negligently. Similarly, some American courts will find liability for unintentional intrusions only where such intrusions arise under circumstances evincing negligence or involve a highly dangerous activity. Exceptions exist for entering land adjoining a road unintentionally (such as in a car accident), as in *River Wear Commissioners v Adamson*. In some jurisdictions trespass while in possession of a firearm, which may include a low-power air weapon without ammunition, constitutes a more grave crime of armed trespass.